

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1538

By: Dollens

AS INTRODUCED

An Act relating to schools; creating the Student Retention Protocol Act of 2025; providing definitions; requiring certain screenings, assessments, and evaluations for students operating below a certain academic threshold; mandating schools to employ qualified personnel; subjecting requirements to availability of funding; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1210.500 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. This section shall be known and may be cited as the "Student Retention Protocol Act of 2025".

B. As used in this act:

1. "At risk of being retained" means students who have been identified by school personnel as operating below the academic threshold necessary to permit enrollment into an advancing grade for the following school year;

1 2. "Family assessment" means a process for gathering and
2 organizing information surrounding the family structure,
3 composition, relationships, characteristics, interactions, and
4 dynamics;

5 3. "Hearing screening" means a test used to evaluate hearing
6 across different pitches and determine risk for hearing loss;

7 4. "Occupational evaluation" means a test administered by an
8 occupational therapist to assess areas of functioning and determine
9 the need for a treatment plan or develop such a treatment plan;

10 5. "Physical therapy evaluation" means the administration,
11 interpretation, and evaluation of tests and measurements of bodily
12 functions and structures;

13 6. "Psychiatric evaluation" means an assessment based on
14 present problems and symptoms of an individual's biological, mental,
15 and social functioning which may or may not result in the diagnosis
16 of a mental illness; and

17 7. "Vision screening" means the process or system used to
18 identify a person having or who may be at risk of developing visual
19 problems that may adversely affect their ability to learn.

20 C. Students who are at risk of being retained shall receive a
21 hearing and visual screening and a family assessment conducted by
22 qualified school personnel. Each school shall employ or contract
23 with qualified school personnel to conduct such screenings and
24 assessments.

1 D. Students who are at risk of being retained shall receive a
2 psychiatric evaluation selected and completed by a qualified
3 professional as determined by the State Department of Education.

4 E. Students at risk of being retained shall receive an
5 occupational therapy or physical therapy evaluation if the screening
6 and evaluations from subsections C and D of this section do not
7 result in a diagnosis or recommendation for treatment. An
8 occupational therapy or physical therapy evaluation shall be
9 conducted by qualified medical professionals employed by or
10 contracted with the school district.

11 F. The provisions of this section shall be subject to the
12 availability of funding.

13 SECTION 2. This act shall become effective July 1, 2025.

14 SECTION 3. It being immediately necessary for the preservation
15 of the public peace, health or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

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